

CERTIFIED RECORD

OF

PROCEEDINGS OF THE GOVERNING BODY OF

THE CITY OF CHEYENNE, WYOMING

APPROVING

THE ISSUANCE AND SALE OF

REVENUE REFUNDING BONDS, SERIES 2021

STATE OF WYOMING)
)
COUNTY OF LARAMIE) ss.
)
CITY OF CHEYENNE)

A regular meeting of the governing body of the City of Cheyenne, Wyoming, was held in the City Council Chambers, Municipal Building, 2101 O’Neil Avenue, Cheyenne, Wyoming, at 6:00 p.m., on Monday, March 22, 2021 in accordance with the rules and regulations of the City.

The following members of the governing body were present, constituting a quorum:

Mayor:	Patrick Collins
Council Members:	Pete Laybourn
	Scott Roybal
	Jeff White
	Bryan M. Cook
	Dr. Mark Rinne
	Tom Segrave
	Dr. Michelle Aldrich
	Richard Johnson
	Ken Esquibel

Absent:

Also present:

Thereupon the following proceedings, among others, were had and taken. The following resolution was introduced and read by title only:

RESOLUTION NO. _____

A RESOLUTION AUTHORIZING THE ISSUANCE AND SALE BY THE CITY OF CHEYENNE, WYOMING OF REVENUE REFUNDING BONDS, SERIES 2021, IN THE PRINCIPAL AMOUNT OF \$5,455,000, FOR THE PURPOSE OF REFUNDING THE CITY'S OUTSTANDING REFUNDING REVENUE BONDS, SERIES 2012; PRESCRIBING THE FORM OF SAID SERIES 2021 BONDS; PROVIDING FOR THE PAYMENT OF THE PRINCIPAL AND INTEREST THEREON; RATIFYING, APPROVING AND CONFIRMING PREVIOUS ACTIONS OF OFFICERS AND MEMBERS OF THE GOVERNING BODY OF THE CITY AND EMPLOYEES THEREOF; AND DETERMINING OTHER MATTERS RELATED TO THE BONDS.

WHEREAS, the City of Cheyenne, Wyoming (the "City") is an incorporated municipality duly organized and operating under the Constitution and laws of the State of Wyoming; and

WHEREAS, pursuant to the provisions of W.S. §15-1-801 (the "Act"), the governing body of the City (the "Governing Body") may construct and provide off-street parking facilities to reduce street congestion; and

WHEREAS, pursuant to the provisions of W.S. §15-1-801(b)(iii), the City may issue revenue bonds for the creation, purchase, lease, construction and maintenance of off-street parking facilities, or refunding revenue bonds to refund, pay or discharge all or part of its off-street parking facility revenue bonds, including interest, utilizing the same procedure for issuing bonds prescribed by W.S. §35-2-424 through §35-2-436 (collectively with W.S. § 15-1-801 also referred to as the "Act"); and

WHEREAS, the City previously issued its \$9,575,000 City of Cheyenne, Wyoming Refunding and Improvement Revenue Bonds, Series 2003, (the "Series 2003 Bonds"), which were issued by the City to refund bonds issued by the City in 1994 and to finance a portion of the construction of the City's Downtown City Center Parking Structure (the "Project"); and

WHEREAS, on June 12, 2012, the City issued its \$9,455,000 Refunding Revenue Bonds (the "Series 2012 Bonds") to refund to the Series 2003 Bonds; and

WHEREAS, Wyoming Statute § 15-1-801(b)(iv) provides that since the City is not using parking meters, the City may pledge and use any other funds available to secure and pay revenue bonds or refunding revenue bonds for the Project, such as revenues from parking spaces, parking garage leases and other parking fees and revenues of the City; and

WHEREAS, pursuant to the provisions of W.S. § 9-4-601(a)(v), the City may also pledge moneys received as federal mineral royalties distributed to the City (the “Mineral Royalty Revenues”), for a period of ten (10) years, to pay debt service on revenue bonds; and

WHEREAS, the City has previously pledged a portion of its Mineral Royalty Revenues, for a period of 10 years commencing with the year of 2012, and pledged its Gross Parking Fee Revenues (as defined in the Bond Resolution for the Series 2012 Bonds) to secure the payment of Series 2012 Bonds; and

WHEREAS, a portion of the Series 2012 Bonds remain outstanding as of the date of this Resolution; and

WHEREAS, the lien on the City’s Mineral Royalty Revenues securing the Series 2012 Bonds is currently the only lien on the City’s Mineral Royalty Revenues; and

WHEREAS, the City’s pledge of its Gross Parking Fee Revenues to secure the Series 2012 Bonds is currently the only pledge of the City’s Gross Parking Fee Revenues; and

WHEREAS, pursuant to the City’s Resolution approving the issuance of the Series 2012 Bonds (the “2012 Bond Resolution”), Series 2012 Bonds maturing on or after April 1, 2019, may be redeemed prior to maturity by paying the outstanding principal of and interest on the outstanding Series 2012 Bonds; and

WHEREAS, the Series 2012 Bonds are subject to optional redemption on April 1, 2021 and on each April 1 or October 1 thereafter; and

WHEREAS, the Governing Body has determined that refunding and paying the outstanding Series 2012 Bonds is in the best interest of the City in order to reduce interest costs and effect a savings; and

WHEREAS, the Governing Body has determined and hereby determines that it is in the best interest of the City that revenue refunding bonds be issued for the purpose of (i) refunding and paying the outstanding Series 2012 Bonds, (ii) establishing a debt service reserve fund in connection with the revenue refunding bonds, and (iii) paying costs of issuance incurred in connection with the issuance of the revenue refunding bonds; and

WHEREAS, the Governing Body has determined and hereby determines that the Mineral Royalty Revenues and the City’s Gross Parking Fee Revenues (as defined herein) should be pledged to secure the repayment of the revenue refunding bonds to be issued; and

WHEREAS, the City will issue its “City of Cheyenne, Wyoming Refunding Revenue Bonds, Series 2021” (the “Series 2021 Bonds”) to finance the refunding and payment of the Series 2012 Bonds, to establish a reserve fund for the Series 2021 Bonds, and to pay costs incurred in connection with the issuance of such Series 2021 Bonds; and

WHEREAS, the Governing Body hereby determines that it is necessary at this time to confirm the sale of the Series 2021 Bonds, and to further authorize the issuance thereof.

THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. Authorization. For the purpose of (i) refunding, paying and cancelling the Series 2012 Bonds, (ii) establishing a debt service reserve fund, and (iii) paying costs of issuing revenue bonds, the City (sometimes hereinafter referred to as the “Issuer”) shall issue its “City of Cheyenne, Wyoming, Revenue Refunding Bonds, Series 2021,” in the principal amount of \$5,455,000 dated March 30, 2021, (the “Series 2021 Bonds” or the “Bonds”).

Section 2. Series 2021 Bond Details. The Series 2021 Bonds shall be issued in the denomination of \$5,000 each or any integral multiple thereof. Unless the Governing Body shall otherwise direct, the registered Bonds shall be numbered separately from 1 upward, with the number of each Bond preceded by “R-.” The Bonds shall be dated March 30, 2021, and shall bear interest from date to maturity, payable on October 1, 2021, and semiannually thereafter on April 1 and October 1 each year (the “Interest Payment Dates”), and shall mature on April 1 each year in the amounts set forth below:

<u>Bond No.</u>	<u>Principal Amount</u>	<u>Maturity</u>	<u>Interest Rate</u>
R-001	\$ 280,000.00	4/01/2022	0.30%
R-002	\$ 280,000.00	4/01/2022	0.30%
R-003	\$ 600,000.00	4/01/2023	0.38%
R-004	\$ 610,000.00	4/01/2024	0.48%
R-005	\$ 660,000.00	4/01/2025	0.60%
R-006	\$ 705,000.00	4/01/2026	0.80%
R-007	\$ 745,000.00	4/01/2027	0.98%
R-008	<u>\$1,575,000.00</u>	4/01/2028	1.03%
TOTAL	\$5,455,000.00		

Section 3. Payment of Series 2021 Bonds; Paying Agent and Bond Registrar. The principal of and premium, if any, on the Series 2021 Bonds is payable in lawful money of the United States of America to the Registered Owner of each Bond upon presentation and surrender at the principal corporate trust office of Wyoming Bank and Trust, Cheyenne, Wyoming, or its successor, as paying agent and bond registrar (the “Paying Agent” or the “Bond Registrar”). If any Bond is not paid upon presentation and surrender at or after maturity, it will continue to draw interest at the rate borne by such Bond until the principal is paid in full. Notwithstanding anything contained in this Resolution to the contrary, interest on any Bond is payable to the person in whose name such Bond is registered, at his or her address as it appears on the registration books maintained by or on behalf of the City by the Bond Registrar, at the close of business on the fifteenth (15th) day (whether or not a business day) of the calendar month next preceding each Interest Payment Date (the “Record Date”), irrespective of any transfer or exchange of such Bond subsequent to such Record Date and prior to such Interest

Payment Date. Such payment shall be paid by check or draft of the Paying Agent mailed on the Interest Payment Date (or, if such Interest Payment Date is not business day, on the next succeeding business day) to such Registered Owner at his or her address as it appears on such registration books. Any such interest not so timely paid or duly provided for will cease to be payable to the person who is the Registered Owner thereof at the close of business on the regular Record Date and will be payable to the person who is the Registered Owner thereof at the close of business on Special Record Date. Such Special Record Date will be fixed by the Bond Registrar whenever moneys become available for payment of the defaulted interest, and notice of the Special Record Date will be given by first class mail not less than ten (10) days prior to the Special Record Date to each Registered Owner as shown on the Bond Registrar's books on a date selected by the Bond Registrar. Alternate means of payment of interest may be used if mutually agreed to between the Registered Owner of any Bond and Paying Agent.

The principal of, premium, if any, and interest on the Bonds shall be paid in accordance with the terms of a "Bond Paying Agent and Registrar Agreement" between the City and Wyoming Bank and Trust, Cheyenne, Wyoming.

Section 4. Optional Prior Redemption of the Series 2021 Bonds. Series 2021 Bonds maturing on or after April 1, 2028 are subject to redemption prior to maturity, at the option of the City, as a whole or in part, on April 1, 2027, and on any Interest Payment Date thereafter, at the redemption prices set forth hereinafter (expressed as percentages of principal amount), plus accrued interest to the redemption date:

<u>Redemption Date</u>	<u>Redemption Price</u>
April 1, 2027 and thereafter	100%

If less than all of the Bonds within a maturity are to be redeemed on any prior redemption date, the Bonds to be redeemed shall be selected by lot not less than forty-five (45) days prior to the date fixed for redemption, in such manner as the Bond Registrar shall determine. The Bonds shall be redeemed only in integral multiples of \$5,000. In the event a Bond is of a denomination larger than \$5,000, a portion of such Bond may be redeemed, but only in the principal amount of \$5,000 or any integral multiple thereof. Such Bond shall be treated for the purpose of redemption as the number of Bonds which results from dividing the principal amount of such Bond by \$5,000.

Notice and Effect of Redemption.

In the event any of the Bonds or portions thereof (which shall be in amounts equal to \$5,000 or any integral multiple thereof) are called for redemption as aforesaid, notice thereof identifying the Bonds or portions thereof to be redeemed will be giving by the Bond Registrar in the name of the City by mailing a copy of the redemption notice by first class mail (postage prepaid), not less than thirty (30) days prior to the date fixed for redemption, to the Registered Owner of each Bond to be redeemed in whole or in part, at the address shown on the registration books maintained by or on behalf of the City by the Bond Registrar. Failure to give such notice by mailing to any Bondowner, or any defect therein, shall not affect the validity of any proceeding for the redemption of other Bonds. All Bonds so called for redemption will cease to

bear interest after the specified redemption date, provided funds for their redemption are on deposit at the place of payment at that time.

Section 5. Form and Execution of Series 2021 Bonds. The Series 2021 Bonds shall be signed in the name and on behalf of the City with the manual or facsimile signature of the Mayor and countersigned with the manual or facsimile signature of the City Treasurer, sealed with a facsimile of the seal of the City, and attested with the manual or facsimile signature of the City Clerk. The City Clerk shall endorse a certificate on every Bond, stating that the same is issued pursuant to law and is within the lawful debt limit of the City. Should any officer whose manual or facsimile appears on the Bonds, or the certificates appearing thereon, cease to be such officer before delivery of the Bonds to the Purchaser(s), such manual or facsimile signature shall nevertheless be valid and sufficient for all purposes.

The Bonds and certificates appearing thereon shall be in substantially the following form:

(Form of Bond)

**UNITED STATES OF AMERICA
CITY OF CHEYENNE, WYOMING
REVENUE REFUNDING BOND, SERIES 2021
(CITY PARKING FACILITY)**

No. R -

\$ _____

Interest Rate

Maturity Date

Original
Dated Date

_____%

March 30, 2021

REGISTERED OWNER:
PRINCIPAL SUM:

DOLLARS

The City of Cheyenne, Wyoming, an incorporated municipality duly organized and operating under the Constitution and laws of the State of Wyoming, (the “City” or the “Issuer”) for value received, hereby acknowledges itself indebted and promises to pay the Registered Owner named above, or registered assigns, on the Maturity Date stated above, the Principal Amount specified above, and in like manner to pay interest on such Principal Amount (computed on the basis of a 360-day year of twelve 30-day months) from the Interest Payment Date next preceding the date of registration and authentication of this Bond, unless this Bond is registered and authenticated prior to October 1, 2021, in which event this Bond shall bear interest from March 30, 2021, at the Interest Rate per annum specified above, payable semiannually on April 1 and October 1 each year, commencing on October 1, 2021, until such Principal Amount is paid, unless this Bond shall have been previously called for redemption and payment shall have been duly provided for or made. The principal of this Bond and premium, if any, is payable in lawful money of the United States of America to the Registered Owner upon presentation at the principal corporate trust office of Wyoming Bank and Trust in Cheyenne, Wyoming, or its successor, as paying agent and bond registrar (the “Paying Agent” or the “Bond Registrar”).

Payment of each installment of interest shall be made to the Registered Owner hereof whose name shall appear on the registration books of the City maintained by or on behalf of the City by the Bond Registrar at the close of business on the fifteenth (15th) day of the calendar month next preceding each Interest Payment Date (the “Record Date”), and shall be paid by check or draft of the Paying Agent mailed to such Registered Owner at his or her address as it appears on such registration books.

REFERENCE IS HEREBY MADE TO ADDITIONAL PROVISIONS OF THIS BOND SET FORTH HEREINAFTER, WHICH ADDITIONAL PROVISIONS SHALL FOR ALL PURPOSES HAVE THE SAME EFFECT AS IF FULLY SET FORTH IN THIS PLACE.

This Bond shall not be valid or become obligatory for any purpose or be entitled to any security or benefit under the authorizing Bond Resolution until the certificate of authentication hereon shall have been signed by the Bond Registrar.

IN TESTIMONY WHEREOF, the Governing Body of the City of Cheyenne, Wyoming, has caused this Bond to be signed by the manual or facsimile signature of the Mayor, sealed with a facsimile of the seal of the City, countersigned with the manual or facsimile signature of the City Treasurer, and attested with the manual or facsimile signature of the City Clerk, all as of the 30th day of March, 2021.

(S E A L)

CITY OF CHEYENNE, WYOMING

(Manual or Facsimile Signature)
Mayor

COUNTERSIGNED:

(Manual or Facsimile Signature)
City Treasurer

ATTESTED:

(Manual or Facsimile Signature)
City Clerk

(Form of Bond Registrar's Certificate of Authentication)

CERTIFICATE OF AUTHENTICATION

This bond is one of the Series 2021 Bonds of the issue described in the within mentioned Bond Resolution.

Date of Registration
and Authentication:

WYOMING BANK AND TRUST,
as Bond Registrar

By: _____
Authorized Officer

(Form of City Clerk's Certificate)

CITY CLERK'S CERTIFICATE

I, the undersigned, City Clerk of the City of Cheyenne, Wyoming, do hereby certify that the within Bond is issued pursuant and according to law and that the same is within the lawful debt limit of the City.

IN TESTIMONY WHEREOF, I have caused this Certificate to be executed with my official signature and the facsimile of the seal of the City, as of the 30th day of March, 2021.

(S E A L)

(Manual Signature)
City Clerk

ADDITIONAL PROVISIONS

This Bond is one of a series (the “Series 2021 Bonds”) aggregating \$5,455,000 par value, all of like date, tenor, and effect except as to number, principal amount, interest rate, and date of maturity, issued by the City of Cheyenne, Wyoming, for the purpose of refunding and paying the City’s outstanding Refunding Revenue Bonds, Series 2012 (the “Series 2012 Bonds”) and paying costs incurred in connection with the issuance of the Series 2021 Bonds, by virtue of and in full conformity with the Constitution of the State of Wyoming; W.S. §§ 15-1-801 and 35-2-424 through 35-2-436 (collectively the “Act”); and all other laws of the State of Wyoming thereunto enabling, and pursuant to the duly adopted Resolution of the City authorizing the issuance of this Bond (the “Bond Resolution”). It is hereby recited, certified, and warranted that all of the requirements of law have been fully complied with by the proper officers in issuing this Bond.

Under the Bond Resolution, the Issuer has pledged certain revenues (the “Pledged Revenues”) for the payment of the principal of, premium, if any, and interest on the Bonds. Payment of principal of and interest on the Bonds is also secured by the Series 2021 Reserve Fund created for such purpose in the Bond Resolution, all as more particularly set forth in the Bond Resolution.

NEITHER THIS BOND NOR THE SERIES OF WHICH IT FORMS A PART, NOR THE INTEREST HEREON, CONSTITUTES A GENERAL OBLIGATION OR OTHER INDEBTEDNESS OF THE CITY WITHIN THE MEANING OF ANY CONSTITUTIONAL OR STATUTORY DEBT LIMITATION.

Optional Prior Redemption of the Series 2021 Bonds. Series 2021 Bonds maturing on or after April 1, 2028, are subject to redemption prior to maturity, at the option of the City, as a whole or in part, on April 1, 2027, and on any Interest Payment Date thereafter, at the redemption prices set forth hereinafter (expressed as percentages of principal amount), plus accrued interest to the redemption date:

<u>Redemption Date</u>	<u>Redemption Price</u>
April 1, 2027 and thereafter	100%

If less than all of the Bonds within a maturity are to be redeemed on any prior redemption date, the Bonds to be redeemed shall be selected by lot not less than forty-five (45) days prior to the date fixed for redemption, in such manner as the Bond Registrar shall determine. The Bonds shall be redeemed only in integral multiples of \$5,000. In the event a Bond is of a denomination larger than \$5,000, a portion of such Bond may be redeemed, but only in the principal amount of \$5,000 or any integral multiple thereof. Such Bond shall be treated for the purpose of redemption as the number of Bonds which results from dividing the principal amount of such Bond by \$5,000.

If less than all of the outstanding Bonds are to be redeemed on any prior redemption date, the Bonds are to be redeemed shall be selected by lot not less than forty-five (45) days prior to the date fixed for redemption in such manner as the Bond Registrar shall determine.

The Bonds will be redeemed only in integral multiples of \$5,000. In the event a Bond is of a denomination larger than \$5,000, a portion of such Bond may be redeemed, but only in the principal amount of \$5,000 or any integral multiple thereof. Such Bond will be treated for the purposes of redemption as that number of Bonds which result from dividing the principal amount of such Bond by \$5,000.

Notice of prior redemption shall be given by mailing a copy of the redemption notice, not less than thirty (30) days prior to the date fixed for redemption, to the Registered Owner of this Bond at the address shown on the registration books maintained by the Bond Registrar, in the manner set forth in the authorizing Bond Resolution. All Bonds called for redemption will cease to bear interest after the specified redemption date, provided funds for their redemption are on deposit at the place of payment at that time.

The City, the Paying Agent and the Bond Registrar shall not be required to transfer or exchange any Bond: (1) during a period beginning on the Record Date and ending at the close of business on the ensuing Interest Payment Date, or (2) during the period beginning on any date of selection of Bonds to be redeemed and ending on the day on which the applicable notice of redemption is given. The Bond Registrar shall not be required to transfer any Bonds selected or called for redemption, in whole or in part, except the unredeemed portion of Bonds being redeemed in part. The City, the Paying Agent and the Bond Registrar may deem and treat the Registered Owner of any Bond as the absolute Owner thereof for all purposes (whether or not such Bond shall be overdue) and any notice to the contrary shall not be binding upon the City, the Paying Agent or the Bond Registrar.

This Bond is fully transferable by the Registered Owner hereof in person or by his or her attorney duly authorized in writing, at the principal office of the Bond Registrar, but only in the manner, subject to the limitations, and upon payment of the charges provided in the authorizing Bond Resolution and upon surrender and cancellation of this Bond. This Bond may be transferred upon the registration books upon delivery to the Bond Registrar of this Bond, accompanied by a written instrument or instruments of transfer in form and with guaranty of signature satisfactory to the Bond Registrar, duly executed by the Owner of this Bond, or his or her attorney-in-fact or legal representative, containing written instructions as to the details of the transfer of the Bond, along with the social security number or federal employer identification number of such transferee. In the event of the transfer of this Bond, the Bond Registrar shall enter the transfer of ownership in the registration books and shall authenticate and deliver in the name of the transferee or transferees a new fully registered Bond or Bonds of authorized denominations of the same maturity and interest rate for the aggregate principal amount which the Registered Owner is entitled to receive at the earliest practicable time. The City has paid for every such transfer an amount sufficient to reimburse the Bond Registrar for its reasonable fees and the Bond Registrar may charge the Registered Owner of this Bond for any tax or other governmental charge required to be paid with respect to such transfer.

(Form of Assignment)

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sells, assigns and transfers unto

(Name and Address of Assignee)

SOCIAL SECURITY OR FEDERAL EMPLOYER
IDENTIFICATION NUMBER OF ASSIGNEE

--

the within Bond and all rights thereunder, and does hereby irrevocably constitute and appoint _____ attorney, to transfer said Bond on the books kept for registration thereof with full power of substitution on the premises.

Dated: _____

NOTICE: The signature to this assignment must correspond with the name of the Registered Owner as if it appears upon the face of the within Bond in every particular, without alteration or enlargement or any change whatever.

Signature Guarantee:

Signature(s) must be guaranteed by a national bank or trust company or by a brokerage firm having a membership in one of the major stock exchanges.

TRANSFER FEE MAY BE REQUIRED

(End of Form of Bond)

Section 6. Authentication. No Series 2021 Bond shall be valid or obligatory for any purpose or be entitled to any security or benefit under this Resolution unless and until a certificate of authentication on such Bond substantially in the form hereinabove set forth shall have been duly executed by the Bond Registrar, and such executed certificate of the Bond Registrar upon any such Bond shall be conclusive evidence that such Bond has been authenticated and delivered under this Resolution. The Bond Registrar's certificate of authentication on any Bond shall be deemed to have been executed by it if signed by an authorized officer or signatory of the Bond Registrar, but it shall not be necessary that the same officer or signatory sign the certificate of authentication on all of the Bonds issued hereunder.

Section 7. Delivery of Series 2021 Bonds. Upon the adoption of this Resolution, the City shall execute the Series 2021 Bonds and deliver them to the Bond Registrar, and the Bond Registrar shall authenticate the Bonds and deliver them to the purchasers, as directed by the City.

Section 8. Registration, Transfer and Exchange of Series 2021 Bonds; Persons Treated as Owners. The Bond Registrar shall maintain the books of the City for the registration of ownership of each Series 2021 Bonds as provided in this Resolution. Bonds may be transferred upon the registration books upon delivery of the Bonds to the Bond Registrar, accompanied by a written instrument or instruments of transfer in form and with guaranty of signature satisfactory to the Bond Registrar, duly executed by the Owner of the Bonds to be transferred or his or her attorney-in-fact or legal representative, containing written instructions as to the details of the transfer of such Bonds, along with the social security number or federal employer identification number of such transferee. No transfer of any Bond shall be effective until entered on the registration books.

In all cases of the transfer of a Bond, the Bond Registrar shall enter the transfer of ownership in the registration books and shall authenticate and deliver in the name of the Owner thereof for all purposes (whether or not such Bond shall be overdue), and any notice to the contrary shall not be binding upon the City, the Paying Agent, or the Bond Registrar.

Section 9. Cancellation of Series 2021 Bonds. Whenever any outstanding Series 2021 Bond shall be delivered to the Bond Registrar for cancellation pursuant to this Resolution, and upon payment of the principal amount and interest represented thereby, or whenever any outstanding Bond shall be delivered to the Bond Registrar for transfer or exchange pursuant to the provisions hereof, such Bond shall be cancelled and returned by the Bond Registrar to the City for retention and later destruction in accordance with the laws of the State of Wyoming.

Section 10. Lost, Stolen, Destroyed or Mutilated Series 2021 Bonds. Any Series 2021 Bond that is lost, stolen, destroyed, or mutilated, may be replaced or paid by the Bond Registrar in accordance with and subject to the limitations of applicable law. The applicant for any such replacement Bond shall post such security, pay such costs, and present such proof of ownership and loss as may be required by applicable law, or in the absence of specific requirements, as may be required by the Bond Registrar.

Section 11. Disposition of Series 2021 Bond Proceeds. The Series 2021 Bonds shall be issued and sold for the purpose of refunding, paying and cancelling the Series 2012 Bonds

and paying the costs of issuance of the Series 2021 Bonds. The Purchasers of the Bonds shall not be responsible for the application or disposal by the City or any of its officers of the funds derived from the sale thereof.

The proceeds of the sale of the Bonds, other than accrued interest which shall be deposited into the Series 2021 Bond Fund (hereinafter defined), shall be applied by the City first to the refunding and payment of the Series 2012 Bonds, second to fund a reserve fund for the Series 2021 Bonds, and third to the payment of the costs of issuance of the Series 2021 Bonds.

All or any portion of the Bond proceeds may be temporarily invested or reinvested pending such use, in securities or obligations, which are lawful investments. It is hereby covenanted and agreed by the City that the temporary investment or reinvestment of the original proceeds of the Bonds, or of any moneys treated as proceeds of the Bonds within the meaning of Section 103 and 148 of the Internal Revenue Code of 1986, as amended (the “Code”) and pertinent regulations, rulings and decisions, shall be of such nature and extent, for such period, and at such yield, that the Bonds shall not be or become “arbitrage bonds” within the meaning of Sections 103 and 148 of the Code and pertinent regulations, rulings, and decisions.

Section 12. Payment of Interest and Principal.

A. Pledge of Revenues. The Governing Body hereby pledges the City’s Mineral Royalty Revenues for a period not to exceed 10 years, commencing with the fiscal year 2021/2022 for the payment of the Series 2021 Bonds. Said pledge shall be valid and binding from and after the date of the first delivery of the Series 2021 Bonds and the Mineral Royalty Revenues shall immediately be subject to the lien of this pledge without any physical delivery thereof, any filing, or further act. The Series 2021 Bonds are equitably and ratably secured by a lien on said Mineral Royalty Revenues and such Series 2012 Bonds constitute an irrevocable and first lien (but not necessarily an exclusive lien) on said Mineral Royalty Revenues.

The Governing Body hereby further pledges all of the City’s gross parking fee revenues, including but not limited to all fees received from parking spaces, parking garage leases and other parking fees and revenues of the City (the “Gross Parking Fee Revenues”) for the repayment of the Series 2021 Bonds. This pledge shall be valid and binding from and after the date of the first delivery of any Series 2021 Bonds and the Gross Parking Fee Revenues shall immediately be subject to the lien of this pledge without any physical delivery thereof, and filing, or further act. The Series 2021 Bonds constitute an irrevocable and first lien (but not necessarily an exclusive lien) on said Gross Parking Fee Revenues.

B. Pledge Securing Series 2021 Bonds. The City’s Mineral Royalty Revenues and Gross Parking Fee Revenues (collectively the “Pledged Revenues”) shall be paid to the Paying Agent pursuant to the terms of Section 15.B. of this Resolution and all moneys and securities paid to or held in any Fund are hereby pledged to secure the payment of the principal and interest on the Series 2021 Bonds; and this pledge shall be valid and binding from and after the date of the first delivery of any Series 2021 Bonds and the Pledged Revenues shall immediately be subject to the lien of this pledge without any physical delivery thereof, any filing, or further act.

C. Series 2021 Bond Fund. A special trust account is authorized hereby to be established by the City and maintained by the Paying Agent and known as the “Series 2021 Revenue Refunding Bonds, Bond Fund” (the “Series 2021 Bond Fund”). So long as any of the Series 2021 Bonds are outstanding. Pledged Revenues are to be deposited into the Series 2021 Bond Fund as hereinafter provided in Section 15.B.

(1) Use of Moneys in the Series 2021 Bond Fund. Any accrued interest deposited into the Series 2021 Bond Fund shall be used to pay interest on the Series 2021 Bonds on October 1, 2021. Moneys in the Series 2021 Bond Fund shall be used solely for the payment of the principal of and interest on the Series 2021 Bonds.

D. Series 2021 Bond Reserve Fund. A special trust account is hereby authorized to be established by the City and maintained by the Paying Agent and known as the “Series 2021 Revenue Refunding Bonds, Reserve Fund” (the “Series 2021 Reserve Fund”). There shall initially be deposited into the Series 2021 Reserve Fund, from proceeds of the Bond Reserve Fund for the Series 2012 Bonds, the amount of \$545,500 (the “Series 2021 Bond Reserve Requirement”). In addition, there shall also be deposited into the Series 2021 Reserve Fund all other moneys received by the Paying Agent when accompanied by directions not inconsistent herewith that such moneys are to be paid into the Series 2021 Reserve Fund.

(1) Use of Moneys in the Series 2021 Reserve Fund. Moneys in the Series 2021 Reserve Fund shall be used solely for the payment of the principal of and interest on the Series 2021 Bonds in the event moneys in the Series 2021 Bond Fund are insufficient to make such payments when due, whether on an Interest Payment Date or maturity date. On the final maturity date of the Series 2021 Bonds, any moneys in the Series 2021 Bond Reserve Fund shall be used for the payment of principal of and interest on the Series 2021 Bonds. If on any payment date the amount in the Series 2021 Reserve Fund is greater than the Series 2021 Bond Reserve Requirement, such excess shall be transferred to the Series 2021 Bond Fund; provided, however, that the amount remaining in the Series 2021 Reserve Fund immediately after such transfer shall not be less than the Series 2021 Bond Reserve Requirement on that date. All Investment Securities (as defined in Section 13.B. herein) in the 2021 Reserve Fund shall be valued at cost.

Section 13. Administration of Funds and Accounts. The funds and accounts established in Section 12.A through 12.D above are to be administered as follows:

A. Places and Times of Deposits. The above accounts and funds are to be separately maintained as book accounts, kept separate from each other and all other accounts, solely for the purposes designated and the moneys accounted for in such special book accounts shall be deposited in a commercial bank or banks or in savings and loan associations or invested as determined by the City in accordance with applicable law. Each periodic payment is to be credited to the proper account not later than the date designated, except that when any date is a Saturday, a Sunday, or a legal holiday, then the payment is to be made on or before the next preceding business day.

B. Investment of Money. Any moneys in any fund or account designated herein may be invested or reinvested in any securities or other obligations, which at the time of investment

are legal investments for the funds proposed to be so invested, as provided in W.S. 9-4-831 (herein "Investment Securities"). Such Investment Securities either are to be subject to redemption at any time at a fixed value at the option of the holder thereof, or are to mature, not later than the day prior to the date or respective dates on which the proceeds are to be expended. For the purpose of the above requirements, Investment Securities are deemed to mature at the earliest date on which the obligor is, on demand, obligated to pay a fixed sum in discharge of the whole of such obligations. The City is to specify the securities in which such investments and reinvestments will be made and, to the extent consistent with other provisions of this Bond Resolution, the times and prices of their purchase and sale.

C. Accounting for Investments. The Investment Securities purchased as investment of moneys in any fund or account are to be deemed at all times to be part of that fund or account, and the interest accruing thereon and any profit realized therefrom are to be credited to the fund and any loss resulting from such investment shall be charged to the fund. Investment Securities purchased as an investment of moneys in any fund or account are to be presented for redemption or sale at the prevailing market price whenever it shall be necessary to do so in order to provide moneys to meet any payment or transfer from such fund.

Section 14. Application of Other Funds for the Payment of Principal and Interest. Nothing contained in this Bond Resolution shall prevent or require the use of any other revenues or funds available therefor in the payment of the principal of or interest on said Series 2012 Bonds, and upon any such payment, the deposits herein provided may be reduced accordingly.

Section 15. Covenants of the City. The City makes the following covenants with the Owners of the Series 2021 Bonds:

A. Performance of Covenants. The City covenants that it will faithfully perform and observe at all times any and all covenants, undertakings, stipulations, and provisions contained in this Bond Resolution, in any and every Series 2021 Bond and in all proceedings of the City, as the case may be, pertaining thereto. The City represents that it is duly authorized under the laws of the State, including particularly and without limitation the Act, to issue the Series 2021 Bonds and to execute this Bond Resolution, to pledge the Pledged Revenues in the manner and to the extent herein set forth, that all actions on its part required for the issuance of the Bonds and execution and delivery of the Bond Resolution have been duly and effectively taken or will be duly taken as provided herein, and that this Bond Resolution is a valid and enforceable instrument of the City and that the Bonds in the hands of the Owners thereof are and will be valid and enforceable special, limited obligations of the City according to the terms thereof.

B. Payment of Principal and Interest; Other Payments. The City will promptly pay or cause to be paid the principal of and interest on all Bonds issued hereunder according to the terms hereof. The principal and interest on all Bonds issued hereunder according to the terms hereof. The principal and interest payments are payable solely from the Pledged Revenues which are hereby specifically pledged to the payment thereof in the manner and to the extent herein specified. Nothing in the Bonds or in this Bond Resolution shall be considered or construed as pledging hereby or creating any liability of the City's members of the Governing Body, employees, or other agents.

The City shall pay, or cause to be paid, into the Series 2021 Bond Fund, immediately upon receipt by the City of its Mineral Royalty Revenues, during any fiscal year of the City (i.e., July 1 through June 30, beginning July 1, 2021), Mineral Royalty Revenues in amounts sufficient to pay 100% of the interest and principal coming due with respect to the Bonds on April 1 and October 1 during the current fiscal year, until the Bonds are paid in full, or are called for prior redemption. In making said payments, the City shall be allowed a credit for any moneys in the respective funds at the times of said payments. In the event that the City's Mineral Royalty Revenues are not sufficient to pay 100% of the interest and principal coming due with respect to the Series 2021 Bonds during any fiscal year, the City shall deposit amounts from the City's Gross Parking Fee Revenues sufficient to pay the remainder of the interest and principal coming due with respect to the Series 2021 Bonds during that fiscal year.

In the event any moneys in the Series 2021 Reserve Fund are transferred to the Series 2021 Bond Fund pursuant to Section 12.D. hereof, the City will deposit in the Series 2021 Reserve Fund beginning on the first day of the first month following such transfer, amounts equal to one-twelfth (1/12th) of the amount necessary to replenish the Reserve Fund to the Series 2021 Bond Reserve Requirement, using funds (i) first, from Mineral Royalty Revenues and (ii) to the extent that Mineral Royalty Revenues are insufficient, from the City's Gross Parking Fee Revenues.

In the event the City shall fail to make any of the payments required by this Section, the item or installment in default shall continue as an obligation of the City until the amount in default shall have been fully paid and the City agrees to pay the same.

C. Additional Bonds. The City will not issue any additional bonds or other obligations having a lien on the City's Pledged Revenues superior to, or on parity with, the lien of the Series 2021 Bonds. Nothing herein shall preclude the City from pledging a lien on the City's Mineral Royalty Revenues or Gross Parking Fee Revenues that is subordinate to the lien on the Pledged Revenues granted herein.

D. Conditions Precedent. Upon the date of issuance of any of the Bonds, the City hereby covenants that all conditions, acts, and things required by the Constitution or statutes of the State or by the Act or by this Bond Resolution to exist, to have happened, or to have been performed precedent to or in the issuance of the Bonds shall exist, have happened and have been performed.

E. Federal Income Tax Exclusion.

(i) General. The City intends that the interest on the Bonds shall be excludable from gross income for federal income tax purposes pursuant to sections 103 and 141 through 150 of the Internal Revenue Code of 1986, as amended (the "Code"), and the applicable Income Tax Regulations (the "Regulations"). The City covenants and agrees not to take any action, or knowingly omit to take any action within its control, that if taken or omitted, respectively, would cause the interest on the Bonds to be includable in gross income, as defined in section 61 of the Code, for federal income tax purposes. In particular, the City covenants and agrees to comply with each requirement of this Section 15.E.; provided, however, that the City shall not be

required to comply with any particular requirement of this Section 15.E. if the City has received an opinion of nationally recognized bond counsel ("Counsel's Opinion") that such noncompliance will not adversely affect the exclusion from gross income for federal income tax purposes of interest on the Bonds or if the City has received a Counsel's Opinion to the effect that compliance with some other requirement set forth in this Section 15.E. will satisfy the applicable requirements of the Code and the Regulations, in which case compliance with such other requirement specified in such Counsel's Opinion shall constitute compliance with the corresponding requirement specified in this Section 15.E.

(ii) No Private Use or Payment and No Private Loan Financing. The City covenants and agrees that it will make such use of the proceeds of the Bonds including interest or other investment income derived from Bond proceeds, regulate the use of property financed, directly or indirectly, with such proceeds, and take such other and further action as may be required so that the Bonds will not be "private activity bonds" within the meaning of section 141 of the Code and the Regulations promulgated thereunder. Moreover, the City shall certify, through an authorized officer, employee or agent that based upon all facts and estimates known or reasonably expected to be in existence on the date the Bonds are delivered, that the proceeds of the Bonds will not be used in a manner that would cause the Bonds to be "private activity bonds" within the meaning of section 141 of the Code and the Regulations promulgated thereunder.

(iii) No Federal Guarantee. The City covenants and agrees that it has not taken and will not take any action, and has not knowingly omitted and will not knowingly omit to take any action, within its control, that, if taken or omitted, respectively, would cause the Bonds to be "federally guaranteed" within the meaning of section 149(b) of the Code and the applicable Regulations thereunder, except as permitted by section 149(b)(3) of the Code and such Regulations.

(iv) No Hedge Bonds. The City covenants and agrees that it has not taken and will not take any action, and has not knowingly omitted and will not knowingly omit to take any action, within its control, that, if taken or omitted, respectively, would cause the Bonds to be "hedge bonds" within the meaning of section 149(g) of the Code and the applicable Regulations thereunder.

(v) No Arbitrage. The City covenants and agrees that it will make such use of the proceeds of the Bonds including interest or other investment income derived from Bond proceeds, regulate investments of proceeds of the Bonds, and take such other and further action as may be required so that the Bonds will not be "arbitrage bonds" within the meaning of section 148(a) of the Code and the applicable Regulations promulgated thereunder. Moreover, the City shall certify, through an authorized officer, employee or agent that based upon all facts and estimates known or reasonably expected to be in existence on the date the Bonds are delivered, the City will reasonably expect that the proceeds of the Bonds will not be used in a manner that would cause the Bonds to be "arbitrage bonds" within the meaning of section 148(a) of the Code and the applicable Regulations promulgated thereunder.

(vi) Arbitrage Rebate. If the City does not qualify for an exception to the requirements of Section 148(f) of the Code relating to the required rebate to the United States,

the City will take all necessary steps to comply with the requirement that certain amounts earned by the City on the investment of the "gross proceeds" of the Bonds (within the meaning of section 148(f)(6)(B) of the Code), be rebated to the federal government. Specifically, the City will (i) maintain records regarding the investment of the gross proceeds of the Bonds as may be required to calculate the amount earned on the investment of the gross proceeds of the Bonds separately from records of amounts on deposit in the funds and accounts of the City allocable to other bond issue of the City or moneys which do not represent gross proceeds of any bonds of the City, (ii) calculate at such times as are required by applicable Regulations, the amount earned from the investment of the gross proceeds of the Bonds which is required to be rebated to the federal government, and (iii) pay, not less often than every fifth anniversary date of the delivery of the Bonds or on such other dates as may be permitted under applicable Regulations, all amounts required to be rebated to the federal government. Further, the City will not indirectly pay any amount otherwise payable to the federal government pursuant to the foregoing requirements to any person other than the federal government by entering into any investment arrangement with respect to the gross proceeds of the Bonds that might result in a reduction in the amount required to be paid to the federal government because such arrangement results in a smaller profit or a larger loss than would have resulted if the arrangement had been at arm's length and had the yield on the issue not been relevant to either party.

(vii) Information Reporting. The City covenants and agrees to file or cause to be filed with the Secretary of the Treasury, not later than the 15th day of the second calendar month after the close of the calendar quarter in which the Bonds are issued, an information statement concerning the Bonds, all under and in accordance with section 149(e) of the Code and the applicable Regulations promulgated thereunder.

(viii) Continuing Obligation. Notwithstanding any other provision of this Bond Resolution the City's obligations under the covenants and provisions of this Section 15.E. shall survive the defeasance and discharge of the Bonds.

(ix) Qualified Tax-Exempt Obligations. The City hereby designates the Series 2021 Bonds as "qualified tax-exempt obligations" for purposes of section 265(b) of the Code. In connection therewith, the City represents (a) that the aggregate amount of tax-exempt obligations issued by the City during calendar year 2021, including the Series 2012 Bonds, which have been designated as "qualified tax-exempt obligations" under section 265(b)(3) of the Code does not exceed \$10,000,000, and (b) that the reasonably anticipated amount of tax-exempt obligations which will be issued by the City during calendar year 2021, including the Series 2021 Bonds, will not exceed \$10,000,000. For purposes of this Section 15.E. (ix), the term "tax-exempt obligation" does not include "private activity bonds" within the meaning of section 141 of the Code, other than "qualified 501(c)(3) bonds" within the meaning of section 145 of the Code. In addition, for purposes of this Section 15.E. (ix), the City includes all governmental units, which are aggregated with the City under section 265(b) of the Code.

Section 16. Reserved.

Section 17. Events of Default. Each of the following constitutes an “Event of Default,” that is, if:

- A. Nonpayment of Principal. Payment of principal of any Series 2021 Bond is not made when due at maturity or upon prior redemption.
- B. Nonpayment of Interest. Payment of interest on any Bond is not made when due.
- C. Bankruptcy. The City declares bankruptcy or files a petition for bankruptcy protection.
- D. Default of any Provision. The City defaults in the punctual performance of its covenants under this Bond Resolution for 30 days after written notice shall have been given to the City by the Owners of 25% of the then outstanding Bonds.

Upon the happening and continuance of any of the Events of Default as provided herein, then and in every case the Owner or Owners of not less than 25% in principal amount of the Bonds then outstanding, including but not limited to a trustee or trustees therefor, may proceed against the City and its agents, officers and employees, in their capacity as such, to protect and enforce the rights of any Owner of Bonds under this Bond Resolution by mandamus or other suit, action or special proceedings in equity or at law, in any court of competent jurisdiction, either for specific performance of any covenant or agreement contained in this Bond Resolution or in an award or execution of any power therein granted for the enforcement of any power or legal or equitable remedy as such Owner or Owners may deem most effectual to protect and enforce said rights, or thereby to enjoin any act or thing which may be unlawful or in violation of any right of any Bond Owner, or to require the City to act as if it were the trustee of an express trust, or any combination of such remedies. All such proceedings at law or in equity shall be instituted, had and maintained for the equal benefit of all Owners of the Bonds then outstanding. The failure of any such Owner so to proceed shall not relieve the City or any of its officers, agents or employees of any liability for failure to perform any such Owner (or trustee thereof) is in addition and cumulative to any other right or privilege thereof. NO OWNER WILL HAVE THE RIGHT TO ACCELERATE THE PAYMENT OF PRINCIPAL OF OR INTEREST ON THE BONDS UPON THE OCCURRENCE OF AN EVENT OF DEFAULT.

Upon the happening of any of the events of default as provided above, the City, in addition, shall do and perform all proper acts on behalf of and for the Owners of the Bonds to protect and preserve the security created for the payment of the principal of and interest on said Bonds promptly as the same become due. So long as any of the Bonds, either as to principal or interest, are outstanding and unpaid, the City shall pay the Pledged Revenues to the Paying Agent for deposit into the Series 2021 Bond Fund and, to the Series 2021 Reserve Fund, when necessary, for use for the purposes therein provided. In the event the City fails or refuses to proceed as provided in this Bond Resolution, the Owner or Owners of not less than twenty-five percent (25%) in principal amount of the Bonds then outstanding, after demand in writing, may proceed to protect and enforce the rights of the Bond owners as hereinabove provided.

Any Owner of any one or more of said Bonds may, either at law or in equity, by suit, action, mandamus or other appropriate proceedings in any court of competent jurisdiction, protect the lien created by this Bond Resolution on the Pledged Revenues and may by suit, action, mandamus or other appropriate proceeding or proceedings enforce and compel the performance of any duty imposed upon the City by the provisions of this Bond Resolution.

Notwithstanding any of the foregoing, the Insurer acting alone, shall have the right to direct all remedies in the Event of Default. The Insurer shall be recognized as the registered owner of each Bond which it insures for the purposes of exercising all rights and privileges available to Bondholders. For Bonds which it insures, the Insurer shall have the right to institute any suit, action, or proceeding at law or in equity under the same terms as a Bondholder in accordance with applicable provisions of the governing documents. Other than pursuant to the redemption provisions set forth in this Resolution, any acceleration of principal payments must be subject to the Insurer's prior written consent.

Section 18. Defeasance. When the Series 2021 Bonds have been fully paid both as to principal and interest, the pledge and lien and all obligations under this Bond Resolution shall be discharged, and the Bonds shall no longer be deemed to be outstanding. Payment of any Bonds is deemed made when the City has placed in trust with a commercial bank exercising trust powers, an amount of money and Federal Securities sufficient (including the known minimum yield from Federal Securities) to meet all requirements of principal of, premium if any, and interest on such Bonds as the same become due to maturity or to a designated prior redemption date or dates. The Federal Securities are to become due prior to the respective times on which the proceeds thereof shall be needed, in accordance with a schedule agreed upon between the City and such bank at the time of the creation of the trust. Federal Securities within the meaning of this paragraph include only direct obligations of, or obligations the principal of and interest on which are unconditionally guaranteed by, the United States and which are not callable prior to their scheduled maturities by the City thereof.

Section 19. Amendment of Bond Resolution.

(a) Amendments to Resolution Not Requiring Consent of Registered Owners. The City may, without the consent of or notice to any of the Registered Owners, consent to any amendment, change or modification of this Resolution as may be required or permitted (a) by the provisions of this Resolution, (b) for the purpose of curing any ambiguity, formal defect, omission or inconsistent provision (provided that such action shall not adversely affect the interests of the Registered Owners), (c) so as to add additional rights of the City acquired in accordance with the provisions of this Resolution, (d) so as to more precisely identify the Pledged Revenues, or (e) in connection with any other change therein which shall not adversely affect the interests of the Registered Owners. The City may rely upon an opinion of bond counsel to the effect that any such amendment is not to the prejudice of the Registered Owners of the Bonds.

(b) Amendments to Resolution Requiring Consent of Registered Owners. Except for the amendments, changes or modifications as provided in Section 19(a) hereof, the City shall not consent to any other amendment, change or modification of this Resolution

without giving notice and obtaining the written approval or consent of the Registered Owners of not less than fifty-one percent (51%) in aggregate principal amount of the Bonds at the time outstanding given and procured as provided in this Section 19(b) provided, however, that no such amendment, change or modification will, without the consent of the Registered Owners of all of the Bonds at the time outstanding, (a) reduce the percentage of the aggregate principal amount of outstanding Bonds the consent of the Registered Owners which is required for any such amendment, change or modification or (b) decrease the amount of any payment required to be made under the Agreement, or (c) extend the time for the payment of any amount required to be made under the Agreement. If at any time the City shall propose any such amendment, change or modification of this Resolution, the City shall cause notice of such proposed amendment, change or modification to be to be mailed by first-class mail to the Registered Owner of each Bond then outstanding as shown by the list of Registered Owners maintained by the Bond Registrar. Such notice shall briefly set forth the nature of such proposed amendment, change or modification and shall state that copies of the instrument embodying the same are on file with the Bond Registrar for inspection by all Registered Owners.

Section 20. Appointment of Professionals Relating to the Issuance of the Bonds. The appointments of the following professionals relating to the issuance of the Bonds by the City are approved: (i) Kaiser Wealth Management as Municipal Advisor; (ii) Hathaway & Kunz, LLP, as Bond Counsel; and (iii) Wyoming Bank and Trust as Bond Registrar and Paying Agent. The officers of the City are authorized to take all actions and execute such documents necessary or convenient to engage such professionals for the purpose of issuing, selling and delivering the Bonds in accordance with this Resolution.

Section 21. Sale of Bonds; Approval and Execution of Documents. The City through its Municipal Advisor has previously provided the Purchasers (as defined below) of the Bonds with a copy of its Placement Summary dated February 26, 2021 (the “PS”). The Governing Body, on behalf of the City, hereby ratifies the use of the PS in conjunction with the sale of the Bonds.

The members of the Governing Body and other City officials are hereby authorized to take such actions and execute and deliver such documents including, but not limited to, the Bonds, a Bond Registrar and Paying Agent Agreement, and a Safekeeping Agency Agreement with Wyoming Bank and Trust as Bond Registrar and Paying Agent, as may be necessary to give effect this Resolution and issue and deliver the Bonds.

Section 22. Award of Sale of Bonds. All bids to purchase the Series 2021 Bonds that were received prior to the deadline set forth in the PS, have been opened, tabulated and considered by the Governing Body.

Platte Valley Bank, ANB Bank, and Wyoming Bank and Trust (the “Purchasers”) have submitted the best bids for the Series 2021 Bonds. A listing of the Bonds to be purchased by each of the Purchasers is attached hereto as Exhibit A. The Bonds shall be awarded and sold to the Purchasers as shown on the allocation of bonds on Exhibit A, and delivered upon receipt of the purchase price therefore.

Section 23. Ratification and Approval of Prior Action. All actions heretofore taken by the officers of the City and members of the Governing Body of the City not inconsistent with the provisions of this Bond Resolution, relating to the authorization, sale, issuance and delivery of said Series 2021 Bonds are hereby ratified, approved and confirmed.

Section 24. Resolution Irrepealable. After the Series 2021 Bonds authorized herein have been issued and are outstanding, this Bond Resolution shall be irrepealable until both the principal of and the interest on said Bonds shall be fully paid, satisfied and discharged.

Section 25. Severability. If any part or provision of this Bond Resolution should ever be judicially determined to be invalid or unenforceable, such determination shall not affect the remaining parts and provisions hereof, the intention being that each part or provision of this Bond Resolution is severable.

Section 26. Authorization to Officers, Members and Employees. The officers and members of the Governing Body of the City and the employees thereof are hereby authorized and directed to take all action necessary or appropriate to effectuate the provisions of this Bond Resolution.

Section 27. Recording. This Resolution, after its passage and approval, shall be recorded by the City Clerk in a book kept for that purpose.

Section 28. Conflicts of Authority. All bylaws, orders, resolutions and Resolutions, or parts thereof, inconsistent herewith are hereby repealed to the extent only of such inconsistency. This repealer shall not be construed as reviving any bylaw, order, resolution or Resolution, or part thereof, heretofore repealed.

Section 29. Effective Date. This Resolution shall be in full force and effect upon its approval.

ADOPTED AND APPROVED this ____ day of March, 2021.

CITY OF CHEYENNE, WYOMING

Patrick Collins, Mayor

(S E A L)

ATTEST:

Kris Jones, City Clerk

STATE OF WYOMING)
) ss
COUNTY OF LARAMIE)

The foregoing resolution (Resolution No. _____) was presented, reviewed and approved by the Governing Body of the City of Cheyenne (the “Governing Body”), County of Laramie, State of Wyoming, at its regular meeting held Monday, March 22, 2021 beginning at 6:00 p.m. in City Council Chambers, Municipal Building, 2101 O’Neil Avenue, Cheyenne, Wyoming. The meeting was called to order and chaired by the Mayor, and upon roll call taken, a quorum of the members of the Governing Body was determined to be present.

Those members of the Governing Body present at the regular meeting cast their vote by roll call upon said Resolution No. _____ as follows:

“Yes”:

“No”:

Governing Body Members Absent:

Thereupon, the Mayor announced the resolution was approved and adopted.

Kris Jones, City Clerk
City of Cheyenne, Wyoming

EXHIBIT A

(Allocation of the Bonds to the Purchasers)

Proposed Allocation Bond Subscription Form Bid Summary

\$5,445,000

City of Cheyenne, Wyoming

Refunding Revenue Bonds

Series 2021

Issuer	City of Cheyenne
State	WY
Rated	NR
BQ	YES
Security	Revenue
Dated Date	3/30/2021

Maturity Date(1)	Sample Yields	Platte Valley Bank		ANB Bank		Wyoming Bank & Trust		
		Amount Allocated	Yield Bid	Amount Allocated	Yield Bid	Amount Allocated	Yield Bid	
4/1/2022	\$550,000 0.330%	\$280,000	0.300%			\$280,000	0.300%	
4/1/2023	\$600,000 0.390%			\$600,000	0.38%			
4/1/2024	\$610,000 0.470%			\$610,000	0.48%			
4/1/2025	\$660,000 0.580%	\$660,000	0.600%					
4/1/2026	\$705,000 0.700%	\$705,000	0.800%					
4/1/2027	\$745,000 0.880%	\$745,000	0.980%					
4/1/2028	\$1,575,000 1.050%					\$1,575,000	1.03%	
	\$5,445,000	\$2,390,000		\$1,210,000		\$1,855,000		\$5,455,000

Special Terms & Conditions:

No

No

No

 **Kaiser Wealth Management**
Registered Investment Advisor

SUBSCRIPTION FORM

EXHIBIT A

\$5,445,000*

**CITY OF CHEYENNE, WYOMING
REFUNDING REVENUE BONDS
SERIES 2021**

TAX-EXEMPT

DATED: DATE OF CLOSING (ON OR ABOUT MARCH 30, 2021)

**NOT RATED
BANK QUALIFIED
CALL PROVISION***

Interest Rates:

If your institution participates, what are the minimum interest rates desired by your institution for participating in this transaction? Given current market conditions, the Municipal Advisor has prepared a sample serial maturity schedule (subject to change) below.

Payment Date	Maximum Par Amount Available	Purchase Amount Requested	Sample Rates	Interest Rate/ Return Requested
4/1/2022	\$ 545,000	\$ 545,000	.33%	.30 %
4/1/2023	\$ 600,000	\$ 600,000	.39%	.39 %
4/1/2024	\$ 610,000	\$ 610,000	.47%	.49 %
4/1/2025	\$ 660,000	\$ 660,000	.58%	.60 %
4/1/2026	\$ 705,000	\$ 705,000	.70%	.80 %
4/1/2027	\$ 745,000	\$ 745,000	.88%	.98 %
4/1/2028	\$ 1,575,000	\$ 750,000	1.05%	1.16 %
Total	\$ 5,445,000	4,615,000		

*Preliminary, subject to change or amendment. Sample rates are for illustrative purposes only, bids will determine final rates.

The Municipal Advisor will make a recommendation to the City of Cheyenne on the selection of participating institutions and par amount of the bonds to be allocated to each institution. The City reserves the right to change the par amount of the bonds, bond terms and covenants, and to determine the par amount of bonds and maturities to be awarded to one or more institutions who may be interested in participating in this transaction. The City also reserves the right to sell the bonds via a public offering or other method if the private placement does not achieve the desired results. The minimum purchase amount is \$100,000.

Optional Prior Redemption of the Series 2021 Bonds. Series 2021 Bonds maturing on or after April 1, 2028 are subject to redemption prior to maturity, at the option of the City, as a whole or in part, on April 1, 2027, and on any Interest Payment Date thereafter, at the redemption prices set forth hereinafter (expressed as percentages of principal amount), plus accrued interest to the redemption date:

<u>Redemption Date</u>	<u>Redemption Price</u>
April 1, 2027 and thereafter	100%

If less than all of the Bonds within a maturity are to be redeemed on any prior redemption date, the Bonds to be redeemed shall be selected by lot not less than forty-five (45) days prior to the date fixed for redemption, in such manner as the Bond Registrar shall determine. The Bonds shall be redeemed only in integral multiples of \$5,000. In the event a Bond is of a denomination larger than \$5,000, a portion of such Bond may be redeemed, but only in the principal amount of \$5,000 or any integral multiple thereof. Such Bonds shall be treated for the purpose of redemption as that number of Bonds which results from dividing the principal amount of such Bond by \$5,000.

Bid Conditions: The bidder may detail any conditions or requirements with respect to its bid below or attach a "Conditions for Bid" to this subscription form.

Conditions:

Minimum maturity block of \$300M

By returning this Subscription Form, the investor acknowledges it has reviewed the bid packet materials provided, investor letter and the attached audited financial statements, and agrees that if it is awarded an opportunity to purchase the bonds that it shall not have the right to seek material changes to the bonds or the bond documents.

Submitted By

Jody Miles
Platte Valley Bank
2201 Main St.
Torrington, WY 82240-1057

This Subscription Form may be delivered, emailed or faxed to the following address by 2:00 PM, MDT on March 11, 2021:

Todd P. Bishop
President/CEO
Kaiser Wealth Management
1620 Pershing Blvd, Suite 110
Cheyenne, Wyoming 82001
(307) 634-1547
(307) 634-1546 Fax
Email: tbishop@kaiserinvest.com



March 3, 2021

Mr. Todd P. Bishop
President/CEO
Kaiser Wealth Management
1620 Pershing Blvd, Suite 110
Cheyenne, WY 82001

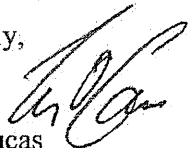
Dear Todd,

We are willing to purchase bonds from the City of Cheyenne, WY refunding of Revenue Bonds Series 2021. We are willing to purchase bonds if we are able to achieve a minimum purchase amount of \$2,300,000 and close by no later than April 23, 2021. There would be no reimbursement of legal expense or origination fees charged by our Bank.

4/2022-4/2024 Maturities:	.95%
4/2025 and 4/2026 Maturities:	1.20%
4/2027 and 4/2028 Maturities:	1.45%

I have enclosed the Subscription form. We are willing to buy any of the bonds offered at our proposed rates as long as we can achieve the \$2,300,000 minimum total purchase. We thank you for providing us with the opportunity to provide a proposal.

Sincerely,


Ty J. Lucas
EVP / Chief Lending Office
Commerce Bank of WY, a branch of NebraskaLand National Bank

SUBSCRIPTION FORM

EXHIBIT A

\$5,445,000*

**CITY OF CHEYENNE, WYOMING
REFUNDING REVENUE BONDS
SERIES 2021**

TAX-EXEMPT

DATED: DATE OF CLOSING (ON OR ABOUT MARCH 30, 2021)

**NOT RATED
BANK QUALIFIED
CALL PROVISION***

Interest Rates:

If your institution participates, what are the minimum interest rates desired by your institution for participating in this transaction? Given current market conditions, the Municipal Advisor has prepared a sample serial maturity schedule (subject to change) below.

<u>Payment Date</u>	<u>Maximum Par Amount Available</u>	<u>Purchase Amount Requested</u>	<u>Sample Rates</u>	<u>Interest Rate/Return Requested</u>
4/1/2022	\$ 545,000	\$	.33%	.95 %
4/1/2023	\$ 600,000	\$	.39%	.95 %
4/1/2024	\$ 610,000	\$	.47%	.95 %
4/1/2025	\$ 660,000	\$	.58%	1.20 %
4/1/2026	\$ 705,000	\$	.70%	1.20 %
4/1/2027	\$ 745,000	\$	.88%	1.45 %
4/1/2028	\$ 1,575,000	\$	1.05%	1.45 %
Total	\$ 5,445,000			

*Preliminary, subject to change or amendment. Sample rates are for illustrative purposes only, bids will determine final rates.

The Municipal Advisor will make a recommendation to the City of Cheyenne on the selection of participating institutions and par amount of the bonds to be allocated to each institution. The City reserves the right to change the par amount of the bonds, bond terms and covenants, and to determine the par amount of bonds and maturities to be awarded to one or more institutions who may be interested in participating in this transaction. The City also reserves the right to sell the bonds via a public offering or other method if the private placement does not achieve the desired results. The minimum purchase amount is \$100,000.

*Minimum of \$2,300,000.00
Rate lock to 4/23/21*

S-1

Up to end of CBW/NUB

SUBSCRIPTION FORM

EXHIBIT A

\$5,445,000*

**CITY OF CHEYENNE, WYOMING
REFUNDING REVENUE BONDS
SERIES 2021**

TAX-EXEMPT

DATED: DATE OF CLOSING (ON OR ABOUT MARCH 30, 2021)

**NOT RATED
BANK QUALIFIED
CALL PROVISION***

Interest Rates:

If your institution participates, what are the minimum interest rates desired by your institution for participating in this transaction? Given current market conditions, the Municipal Advisor has prepared a sample serial maturity schedule (subject to change) below.

<u>Payment Date</u>	<u>Maximum Par Amount Available</u>	<u>Purchase Amount Requested</u>	<u>Sample Rates</u>	<u>Interest Rate/ Return Requested</u>
4/1/2022	\$ 545,000	\$ 545,000	.33%	.31 %
4/1/2023	\$ 600,000	\$ 600,000	.39%	.38 %
4/1/2024	\$ 610,000	\$ 610,000	.47%	.48 %
4/1/2025	\$ 660,000	\$ 660,000	.58%	.73 %
4/1/2026	\$ 705,000	\$ 705,000	.70%	.95 %
4/1/2027	\$ 745,000	\$ 745,000	.88%	1.16 %
4/1/2028	\$ 1,575,000	\$ 1,575,000	1.05%	1.35 %
Total	\$ 5,445,000			

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Optional Prior Redemption of the Series 2021 Bonds. Series 2021 Bonds maturing on or after April 1, 2028 are subject to redemption prior to maturity, at the option of the City, as a whole or in part, on April 1, 2027, and on any Interest Payment Date thereafter, at the redemption prices set forth hereinafter (expressed as percentages of principal amount), plus accrued interest to the redemption date:

<u>Redemption Date</u>	<u>Redemption Price</u>
April 1, 2027 and thereafter	100%

If less than all of the Bonds within a maturity are to be redeemed on any prior redemption date, the Bonds to be redeemed shall be selected by lot not less than forty-five (45) days prior to the date fixed for redemption, in such manner as the Bond Registrar shall determine. The Bonds shall be redeemed only in integral multiples of \$5,000. In the event a Bond is of a denomination larger than \$5,000, a portion of such Bond may be redeemed, but only in the principal amount of \$5,000 or any integral multiple thereof. Such Bonds shall be treated for the purpose of redemption as that number of Bonds which results from dividing the principal amount of such Bond by \$5,000.

Bid Conditions: The bidder may detail any conditions or requirements with respect to its bid below or attach a "Conditions for Bid" to this subscription form.

Conditions:

By returning this Subscription Form, the investor acknowledges it has reviewed the bid packet materials provided, investor letter and the attached audited financial statements, and agrees that if it is awarded an opportunity to purchase the bonds that it shall not have the right to seek material changes to the bonds or the bond documents.

Submitted By

ANB Bank
1912 Capitol Ave
Cheyenne WY 82001

Lori Schone 307-773-0528

This Subscription Form may be delivered, emailed or faxed to the following address by 2:00 PM, MDT on March 11, 2021:

Todd P. Bishop
President/CEO
Kaiser Wealth Management
1620 Pershing Blvd, Suite 110
Cheyenne, Wyoming 82001
(307) 634-1547
(307) 634-1546 Fax
Email: tbishop@kaiserinvest.com

SUBSCRIPTION FORM

EXHIBIT A

\$5,445,000*

**CITY OF CHEYENNE, WYOMING
REFUNDING REVENUE BONDS
SERIES 2021**

TAX-EXEMPT

DATED: DATE OF CLOSING (ON OR ABOUT MARCH 30, 2021)

**NOT RATED
BANK QUALIFIED
CALL PROVISION***

Interest Rates:

If your institution participates, what are the minimum interest rates desired by your institution for participating in this transaction? Given current market conditions, the Municipal Advisor has prepared a sample serial maturity schedule (subject to change) below.

<u>Payment Date</u>	<u>Maximum Par Amount Available</u>	<u>Purchase Amount Requested</u>	<u>Sample Rates</u>	<u>Interest Rate/Return Requested</u>
4/1/2022	\$ 545,000	\$	.33%	%
4/1/2023	\$ 600,000	\$	.39%	%
4/1/2024	\$ 610,000	\$	.47%	%
4/1/2025	\$ 660,000	\$	.58%	%
4/1/2026	\$ 705,000	\$	.70%	%
4/1/2027	\$ 745,000	\$ 100,000	.88%	1.43 %
4/1/2028	\$ 1,575,000	\$ 100,000	1.05%	1.56 %
Total	\$ 5,445,000			

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Redemption Date

April 1, 2027 and thereafter

Redemption Price

100%

If less than all of the Bonds within a maturity are to be redeemed on any prior redemption date, the Bonds to be redeemed shall be selected by lot not less than forty-five (45) days prior to the date fixed for redemption, in such manner as the Bond Registrar shall determine. The Bonds shall be redeemed only in integral multiples of \$5,000. In the event a Bond is of a denomination larger than \$5,000, a portion of such Bond may be redeemed, but only in the principal amount of \$5,000 or any integral multiple thereof. Such Bonds shall be treated for the purpose of redemption as that number of Bonds which results from dividing the principal amount of such Bond by \$5,000.

Bid Conditions: The bidder may detail any conditions or requirements with respect to its bid below or attach a "Conditions for Bid" to this subscription form.

Conditions:

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Submitted By

Banner Capital Bank
Jonny Wyatt CFO

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Todd P. Bishop
President/CEO
Kaiser Wealth Management
1620 Pershing Blvd, Suite 110
Cheyenne, Wyoming 82001
(307) 634-1547
(307) 634-1546 Fax
Email: tbishop@kaiserinvest.com

SUBSCRIPTION FORM

EXHIBIT A

\$5,445,000*

**CITY OF CHEYENNE, WYOMING
REFUNDING REVENUE BONDS
SERIES 2021**

TAX-EXEMPT

DATED: DATE OF CLOSING (ON OR ABOUT MARCH 30, 2021)

**NOT RATED
BANK QUALIFIED
CALL PROVISION***

Interest Rates:

If your institution participates, what are the minimum interest rates desired by your institution for participating in this transaction? Given current market conditions, the Municipal Advisor has prepared a sample serial maturity schedule (subject to change) below.

<u>Payment Date</u>	<u>Maximum Par Amount Available</u>	<u>Purchase Amount Requested</u>	<u>Sample Rates</u>	<u>Interest Rate/ Return Requested</u>
4/1/2022	\$ 545,000	\$ 545,000	.33%	.30 %
4/1/2023	\$ 600,000	\$ 600,000	.39%	.39 %
4/1/2024	\$ 610,000	\$	.47%	%
4/1/2025	\$ 660,000	\$	.58%	%
4/1/2026	\$ 705,000	\$	.70%	%
4/1/2027	\$ 745,000	\$	.88%	%
4/1/2028	\$ 1,575,000	\$ 1,575,000	1.05%	1.03 %
Total	\$ 5,445,000	2,720,000		

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Bid Conditions: The bidder may detail any conditions or requirements with respect to its bid below or attach a "Conditions for Bid" to this subscription form.

Conditions:

None

By returning this Subscription Form, the investor acknowledges it has reviewed the bid packet materials provided, investor letter and the attached audited financial statements, and agrees that if it is awarded an opportunity to purchase the bonds that it shall not have the right to seek material changes to the bonds or the bond documents.

Submitted By

Jeff Wallace
Wyoming Bank & Trust
[Signature]

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Todd P. Bishop
President/CEO
Kaiser Wealth Management
1620 Pershing Blvd, Suite 110
Cheyenne, Wyoming 82001
(307) 634-1547
(307) 634-1546 Fax
Email: tbishop@kaiserinvest.com

1425 10th Street, Gering, NE 69341 • 308.436.2300
1940 10th Street, Gering, NE 69341 • 308.436.6043
1701 1st Avenue, Scottsbluff, NE 69361 • 308.632.7500

March 11, 2021

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

Kaiser Wealth Management, as Municipal Advisor
1620 E. Pershing Blvd, Ste. 110
Cheyenne, WY 82001

Hathaway & Kunz, LLP, as Bond Counsel
2515 Warren Ave., Ste. 500
Cheyenne, WY 82001

Re: \$5,445,000, City of Cheyenne, Wyoming,
Revenue Refunding Bonds, Series 2021 (the "Bonds")

Ladies & Gentlemen:

Western States Bank is a locally-owned and community minded bank with 10 branches in Northeastern Colorado, Western Nebraska and Southeastern Wyoming. We have three Wyoming locations and two of those locations are within the City of Cheyenne. We are proud of our heritage as a true community bank and the investments we make to build and strengthen our local economies.

Attached please find our Subscription Form for the above-mentioned tax-exempt bonds. If you have any questions, please feel free to contact me at 308-633-8237 or m.maschmeier@wsb.bank.

Sincerely,



Michelle Maschmeier
SVP/Cashier

Enclosure

SUBSCRIPTION FORM

EXHIBIT A

\$5,445,000*

**CITY OF CHEYENNE, WYOMING
REFUNDING REVENUE BONDS
SERIES 2021**

TAX-EXEMPT

DATED: DATE OF CLOSING (ON OR ABOUT MARCH 30, 2021)

**NOT RATED
BANK QUALIFIED
CALL PROVISION***

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<u>Payment Date</u>	<u>Maximum Par Amount Available</u>	<u>Purchase Amount Requested</u>	<u>Sample Rates</u>	<u>Interest Rate/Return Requested</u>
4/1/2022	\$ 545,000	\$ 545,000	.33%	.38 %
4/1/2023	\$ 600,000	\$ 600,000	.39%	.46 %
4/1/2024	\$ 610,000	\$ 610,000	.47%	.62 %
4/1/2025	\$ 660,000	\$ 660,000	.58%	.86 %
4/1/2026	\$ 705,000	\$ 705,000	.70%	1.10 %
4/1/2027	\$ 745,000	\$ 745,000	.88%	1.30 %
4/1/2028	\$ 1,575,000	\$ 1,575,000	1.05%	1.50 %
Total	\$ 5,445,000	\$ 5,445,000		

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April 1, 2027 and thereafter	100%

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Conditions:

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Submitted By

Western States Bank

By: Michael W. Schmeier
SVP/Cashier

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Todd P. Bishop
President/CEO
Kaiser Wealth Management
1620 Pershing Blvd, Suite 110
Cheyenne, Wyoming 82001
(307) 634-1547
(307) 634-1546 Fax
Email: tbishop@kaiserinvest.com

SUBSCRIPTION FORM

EXHIBIT A

\$5,445,000*

**CITY OF CHEYENNE, WYOMING
REFUNDING REVENUE BONDS
SERIES 2021**

TAX-EXEMPT

DATED: DATE OF CLOSING (ON OR ABOUT MARCH 30, 2021)

**NOT RATED
BANK QUALIFIED
CALL PROVISION***

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4/1/2022	\$ 545,000	\$	.33%	%
4/1/2023	\$ 600,000	\$	.39%	%
4/1/2024	\$ 610,000	\$ <i>Sub</i>	.47%	%
4/1/2025	\$ 660,000	\$ <i>Attached</i>	.58%	%
4/1/2026	\$ 705,000	\$	.70%	%
4/1/2027	\$ 745,000	\$	.88%	%
4/1/2028	\$ 1,575,000	\$	1.05%	%
Total	\$ <u>5,445,000</u>			

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Redemption Date

April 1, 2027 and thereafter

Redemption Price

100%

If less than all of the Bonds within a maturity are to be redeemed on any prior redemption date, the Bonds to be redeemed shall be selected by lot not less than forty-five (45) days prior to the date fixed for redemption, in such manner as the Bond Registrar shall determine. The Bonds shall be redeemed only in integral multiples of \$5,000. In the event a Bond is of a denomination larger than \$5,000, a portion of such Bond may be redeemed, but only in the principal amount of \$5,000 or any integral multiple thereof. Such Bonds shall be treated for the purpose of redemption as that number of Bonds which results from dividing the principal amount of such Bond by \$5,000.

Bid Conditions: The bidder may detail any conditions or requirements with respect to its bid below or attach a "Conditions for Bid" to this subscription form.

Conditions:

See attached

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Submitted By

[Signature]
U.S. Bank, NA

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Todd P. Bishop
President/CEO
Kaiser Wealth Management
1620 Pershing Blvd, Suite 110
Cheyenne, Wyoming 82001
(307) 634-1547
(307) 634-1546 Fax
Email: tbishop@kaiserinvest.com



March 11, 2021

City of Cheyenne
Cheyenne, WY

VIA ELECTRONIC MAIL

U.S. Bank National Association (the "Bank") is pleased to offer the following preliminary terms for financing the Refunding Revenue Bonds, Series 2021 (the "Note") within the Bank's loan portfolio:

Borrower: City of Cheyenne, Wyoming.

Amount: \$5,445,000 – All or none. The Bank will not permit any partial allocations.

Maturity: April 1, 2028.

Closing Date: On or about March 30, 2021. The Bank reserves the right to amend, modify, or otherwise rescind the terms and conditions herein if the Closing Date is on or after April 11, 2021.

Interest Rate: 1.39%.

Principal Payments: Principal shall be payable annually, commencing on April 1, 2022. **NOTE: U.S. Bank will not consent to any amendment or modification of the amortization schedule after the Closing Date.**

Interest Payments: Interest shall be payable October 1, 2021, commencing on October 1, 2021.

Prepayments: The Notes may be prepaid, at the option of the Borrower on April 1, 2027, subject to 10 business days' notice to the Bank.

Disbursement: The proceeds of the Note shall be disbursed to the Borrower only as a single disbursement at closing. **NOTE: U.S. Bank makes no representations as to the timeliness or punctuality of disbursements via wire. The Bank will not accept any liability or responsibility for subsequent related transactions on the Closing Date. The Borrower acknowledges that disbursements via wire may occur at any time during New York business hours on the Closing Date and accepts all responsibility for any subsequent related transactions scheduled for the Closing Date.**

Security: The Note shall be secured by a pledge of, and parity lien on, i) Federal Mineral Royalties received by the Borrower, and ii) Gross Parking Fee Revenues collected by the Borrower, as both terms are defined in the Placement Summary, dated March 11, 2021.

Tax Status: Interest on the Note shall be tax-exempt, and shall be designated "bank qualified" by the Borrower.

Denominations: To the extent permissible under the authorizing legislation of the Borrower, the Note shall be in a single authorized denomination of \$5,445,000.

Bond Counsel: All documentation associated with the financing, with the exception of the Loan Agreement (defined below), shall be provided at the Borrower's expense and prepared by qualified counsel to the Borrower, agreeable to the Bank in the Bank's sole discretion, whom has specific public finance expertise in the State of Wyoming ("Bond Counsel").

Documentation: Documentation for the Note shall include, but is not limited to, an appropriate authorizing resolution or ordinance, duly executed instrument, and Bond Counsel opinion



that the Note is tax-exempt, and a legal, valid, binding, enforceable and properly authorized obligation of the Borrower (the "Financing Documents"). The resolution or ordinance shall incorporate loan-type language, specifically referencing principal installments rather than maturities or sinking fund payments. The Financing Documents shall refer to the Bank as "the Bank" or "the Lender".

Loan Agreement: In addition to the Financing Documents, the Bank shall require a separate side agreement (the "Loan Agreement") with the Borrower. The Loan Agreement will contain provisions, covenants, events of default, and remedies (see: Covenants/Provisions below). In the sole discretion of the Bank, the Loan Agreement may be replaced by, with all material terms and conditions incorporated into, a bond/note purchase agreement, financing agreement or other such similar document acceptable to the Bank and its counsel.

Costs: The Borrower shall reimburse the Bank for out of pocket expenses, if any, subject to a limit of \$500. Additionally, the Borrower shall be responsible for the fees of Bank counsel, if any, whose fees shall not exceed \$2,500.

Covenants/Provisions: The Loan Agreement will include standard and customary representations and warranties by the Borrower, and shall also include the following covenants and provisions:

1. The Borrower shall covenant to provide the Bank, or provide notification of such repository where the Bank may reasonably obtain, its annual, audited financial statements within 330 days of fiscal year end.
2. The Borrower shall provide the Bank with a copy of the Borrower's final budget upon request, which request shall in no case be prior to 45 days after the end of the prior fiscal year.
3. The Borrower shall provide the Bank financial or other information as may be reasonably requested from time to time.
4. The Borrower shall promptly notify the Bank of any material adverse events related to the Note.
5. The Borrower shall promptly notify the Bank upon any event of default related to the Note or any other parity or general obligation debt (as applicable) of the Borrower.
6. The Borrower shall provide all information required for the Bank to comply with the Patriot Act, upon request.
7. In the event of an ongoing payment default, subject to the notice and cure period described in section 10 below, the Borrower shall, to the extent allowed by state law, reimburse the Bank for reasonable costs incurred for enforcement or collection of the Note, subject to a limit of \$10,000.
8. Upon a determination of taxability, solely caused by actions taken by, or inaction on the part of, the Borrower the Notes shall accrue interest at 2.34% on and after such date of the determination of taxability until such time as the Notes are fully repaid or the event causing the determination of taxability is cured. A determination of taxability shall not be an event of default.
9. The Borrower and the Bank mutually agree to waive their right to trial by jury.
10. Upon an event of default, and subject to a 30 day cure period (10 day cure period for payment default) after written notice by the Bank to the Borrower, the Bank may pursue any remedy at law or in equity including, but not limited to: enforcement of the obligation through court order, collection and enforcement procedures allowed by state law, and any other remedies available to the Bank. An event of default shall mean, and is limited to:



- a. Failure to pay principal or interest when due;
 - b. Failure to fulfill duties of the Loan Agreement, the authorizing legislation or the bond/note instrument; or
 - c. Material misrepresentation under any Financing Document that results in pecuniary damages to the Bank.
11. The Note shall be registered in the name of the Bank, and shall not be registered with the Depository Trust Company or any other securities depository.
12. The obligation shall not be:
- (i) assigned a separate rating by any rating agency;
 - (ii) issued pursuant to any type of offering document or official statement; and,
 - (iii) assigned a CUSIP number by Standard & Poor's CUSIP service.

Expiration: Unless otherwise accepted by the Borrower, this proposal shall expire on March 31, 2021 with no further notice required.

Reliance: The terms and conditions of this proposal letter are not subject to change except as explicitly provided for herein. However, this offer for financing should not be construed as an unconditional commitment to lend. This offer for financing is a preliminary indication of interest subject to: i) credit approval pending review of the final documentation; and ii) acceptance of all terms and conditions contained herein by the Borrower.

Please feel free to contact me at 513.449.7186, or Mark Parsons at 307/778-1651, if you have any questions regarding this or any other banking matter. Thank you for the opportunity to provide financing for your borrowing needs.

Regards,

Cameron M. Parker
Vice President

Cc: Dan Clements, U.S. Bank, NA
Jayne Pankratz, U.S. Bank, NA

City of Cheyenne, Wyoming
Refunding Revenue Bonds, Series 2021
Parking Garage

Sources and Uses of Funds

03/30/21

Sources:

Bond Proceeds	5,455,000.00
Accrued Interest	970,500.00
2012 Reserve Fund	-----
	6,425,500.00
Total	=====

Uses:

Pay & Cancel Series 2012 Bonds	5,800,000.00
Costs of Issuance	80,000.00
Debt Service Reserve	545,500.00
Accrued Interest	-----
	6,425,500.00
Total	=====

City of Cheyenne, Wyoming
Refunding Revenue Bonds, Series 2021
Parking Garage
Debt Service Schedule

Dated Date: 03/30/21
Delivery Date: 03/30/21

Date	Principal	Rate	Interest	Total Debt Service	Fiscal Debt Service

10/01/21			20,116.89	20,116.89	
04/01/22	560,000.00	0.300	20,005.75	580,005.75	600,122.64
10/01/22			19,165.75	19,165.75	
04/01/23	600,000.00	0.380	19,165.75	619,165.75	638,331.50
10/01/23			18,025.75	18,025.75	
04/01/24	610,000.00	0.480	18,025.75	628,025.75	646,051.50
10/01/24			16,561.75	16,561.75	
04/01/25	660,000.00	0.600	16,561.75	676,561.75	693,123.50
10/01/25			14,581.75	14,581.75	
04/01/26	705,000.00	0.800	14,581.75	719,581.75	734,163.50
10/01/26			11,761.75	11,761.75	
04/01/27	745,000.00	0.980	11,761.75	756,761.75	768,523.50
10/01/27			8,111.25	8,111.25	
04/01/28	1,575,000.00	1.030	8,111.25	1,583,111.25	1,591,222.50

Total	5,455,000.00		216,538.64	5,671,538.64	
Accrued					

Net Cost	5,455,000.00		216,538.64	5,671,538.64	
=====					

	From Dated Date	From Delivery Date
	-----	-----
Average Coupon	0.85706	0.85706
TIC		0.85548
Bond Years	25,265.15278	25,265.15278
Average Life	4.63156	4.63156
NIC	0.85706	0.85706

City of Cheyenne, Wyoming
Refunding Revenue Bonds, Series 2021
Parking Garage
Savings Report

Dated Date: 03/30/21
Delivery Date: 03/30/21

Proposed Debt Service					Prior	
Date	Principal	Rate	Interest	Total	Debt Service	Savings
04/01/22	560,000.00	0.300	40,122.64	600,122.64	725,937.50	125,814.86
04/01/23	600,000.00	0.380	38,331.50	638,331.50	762,425.00	124,093.50
04/01/24	610,000.00	0.480	36,051.50	646,051.50	771,800.00	125,748.50
04/01/25	660,000.00	0.600	33,123.50	693,123.50	806,200.00	113,076.50
04/01/26	705,000.00	0.800	29,163.50	734,163.50	838,700.00	104,536.50
04/01/27	745,000.00	0.980	23,523.50	768,523.50	869,200.00	100,676.50
04/01/28	1,575,000.00	1.030	16,222.50	1,591,222.50	1,747,600.00	156,377.50
Total	5,455,000.00		216,538.64	5,671,538.64	6,521,862.50	850,323.86
Accrued						
Net Cost	5,455,000.00		216,538.64	5,671,538.64	6,521,862.50	850,323.86
Cash from Issuer						-435,500.00
Net Savings (Cost)						414,823.86

City of Cheyenne, Wyoming
Refunding Revenue Bonds, Series 2021
Parking Garage

Present Value Date: 03/30/21

Actuarial Yield: 0.85706000%

Date	Amount	PV Factor	PV Amount
10/01/21	55,351.86	0.9957093307	55,114.36
04/01/22	70,463.00	0.9914606245	69,861.29
10/01/22	49,546.75	0.9872300476	48,914.04
04/01/23	74,546.75	0.9830175226	73,280.76
10/01/23	42,874.25	0.9788229725	41,966.30
04/01/24	82,874.25	0.9746463206	80,773.08
10/01/24	36,538.25	0.9704874906	35,459.91
04/01/25	76,538.25	0.9663464063	73,962.46
10/01/25	29,768.25	0.9622229922	28,643.69
04/01/26	74,768.25	0.9581171726	71,636.74
10/01/26	22,838.25	0.9540288727	21,788.35
04/01/27	77,838.25	0.9499580176	73,943.07
10/01/27	15,688.75	0.9459045329	14,840.06
04/01/28	140,688.75	0.9418683445	132,510.28
Total	850,323.86		822,694.39
Accrued			
Cash	-435,500.00		-435,500.00
Net Total	414,823.86		387,194.39

Bond Subscription Form Bid Summary

\$5,445,000
City of Cheyenne, Wyoming
Refunding Revenue Bonds
Series 2021

Issuer
 State
 Rated
 BQ
 Security
 Dated Date

City of Cheyenne
WY
NR
YES
Revenue
3/30/2021

			Platte Valley Bank		ANB Bank		Wyoming Bank & Trust		Commerce Bank of Wyoming	
			Amount Requested	Yield Bid	Amount Requested	Yield Bid	Amount Requested	Yield Bid	Amount Requested	Yield Bid
Maturity Date(1)	2/26/2021	Sample Yields								
4/1/2022	\$550,000	0.330%	\$545,000	0.300%	\$545,000	0.31%	\$545,000	0.30%	\$545,000	0.95%
4/1/2023	\$600,000	0.390%	\$600,000	0.390%	\$600,000	0.38%	\$600,000	0.39%	\$600,000	0.95%
4/1/2024	\$610,000	0.470%	\$610,000	0.490%	\$610,000	0.48%			\$610,000	0.95%
4/1/2025	\$660,000	0.580%	\$660,000	0.600%	\$660,000	0.73%			\$660,000	1.20%
4/1/2026	\$705,000	0.700%	\$705,000	0.800%	\$705,000	0.95%			\$705,000	1.20%
4/1/2027	\$745,000	0.880%	\$745,000	0.980%	\$745,000	1.16%			\$745,000	1.45%
4/1/2028	\$1,575,000	1.050%	\$750,000	1.160%	\$1,575,000	1.35%	\$1,575,000	1.03%	\$1,575,000	1.45%
	\$5,445,000		\$4,615,000		\$5,440,000		\$2,720,000		\$5,440,000	
Minimum Amount Requested:			\$300,000		none		none		\$2,300,000	
Maximum Amount Requested:			\$4,615,000		\$5,440,000		\$2,720,000		\$5,440,000	
Special Terms & Conditions:			No		No		No		No	

			Banner Capital Bank		Western States Bank		US Bank	
			Amount Requested	Yield Bid	Amount Requested	Yield Bid	Amount Requested	Yield Bid
Maturity Date(1)	2/26/2021	Sample Yields						
4/1/2022	\$550,000	0.330%			\$545,000	0.38%	\$545,000	1.39%
4/1/2023	\$600,000	0.390%			\$600,000	0.46%	\$600,000	1.39%
4/1/2024	\$610,000	0.470%			\$610,000	0.62%	\$610,000	1.39%
4/1/2025	\$660,000	0.580%			\$660,000	0.86%	\$660,000	1.39%
4/1/2026	\$705,000	0.700%			\$705,000	1.10%	\$705,000	1.39%
4/1/2027	\$745,000	0.880%	\$100,000	1.43%	\$745,000	1.30%	\$745,000	1.39%
4/1/2028	\$1,575,000	1.050%	\$100,000	1.56%	\$1,575,000	1.50%	\$1,575,000	1.39%
	\$5,445,000		\$200,000		\$5,440,000		\$5,440,000	
Minimum Amount Requested:			none		none		\$5,440,000	
Maximum Amount Requested:			\$200,000		\$5,440,000		\$5,440,000	
Special Terms & Conditions:			No		No		Yes	

 **Kaiser Wealth Management**
 Registered Investment Advisor

Proposed Allocation Bond Subscription Form Bid Summary

\$5,445,000
City of Cheyenne, Wyoming
Refunding Revenue Bonds
Series 2021

Issuer	City of Cheyenne
State	WY
Rated	NR
BQ	YES
Security	Revenue
Dated Date	3/30/2021

			Platte Valley Bank		ANB Bank		Wyoming Bank & Trust		
Maturity Date(1)		Sample Yields	Amount Allocated	Yield Bid	Amount Allocated	Yield Bid	Amount Allocated	Yield Bid	
4/1/2022	\$550,000	0.330%	\$280,000	0.300%			\$280,000	0.300%	
4/1/2023	\$600,000	0.390%			\$600,000	0.38%			
4/1/2024	\$610,000	0.470%			\$610,000	0.48%			
4/1/2025	\$660,000	0.580%	\$660,000	0.600%					
4/1/2026	\$705,000	0.700%			\$705,000	0.800%			
4/1/2027	\$745,000	0.880%	\$745,000	0.980%					
4/1/2028	\$1,575,000	1.050%					\$1,575,000	1.03%	
	\$5,445,000		\$2,390,000		\$1,210,000		\$1,855,000		\$5,455,000

Special Terms & Conditions:

No

No

No



Kaiser Wealth Management
Registered Investment Advisor